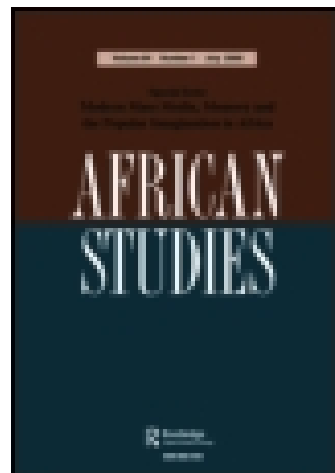


This article was downloaded by: [Universite Laval]

On: 04 March 2015, At: 12:37

Publisher: Routledge

Informa Ltd Registered in England and Wales Registered Number: 1072954 Registered office: Mortimer House, 37-41 Mortimer Street, London W1T 3JH, UK



African Studies

Publication details, including instructions for authors and subscription information:

<http://www.tandfonline.com/loi/cast20>

Land tenure among the Akamba

H. E. Lambert

Published online: 19 Jan 2007.

To cite this article: H. E. Lambert (1947) Land tenure among the Akamba, *African Studies*, 6:3, 131-147, DOI:

[10.1080/00020184708706738](https://doi.org/10.1080/00020184708706738)

To link to this article: <http://dx.doi.org/10.1080/00020184708706738>

PLEASE SCROLL DOWN FOR ARTICLE

Taylor & Francis makes every effort to ensure the accuracy of all the information (the "Content") contained in the publications on our platform. However, Taylor & Francis, our agents, and our licensors make no representations or warranties whatsoever as to the accuracy, completeness, or suitability for any purpose of the Content. Any opinions and views expressed in this publication are the opinions and views of the authors, and are not the views of or endorsed by Taylor & Francis. The accuracy of the Content should not be relied upon and should be independently verified with primary sources of information. Taylor and Francis shall not be liable for any losses, actions, claims, proceedings, demands, costs, expenses, damages, and other liabilities whatsoever or howsoever caused arising directly or indirectly in connection with, in relation to or arising out of the use of the Content.

This article may be used for research, teaching, and private study purposes. Any substantial or systematic reproduction, redistribution, reselling, loan, sub-licensing, systematic supply, or distribution in any form to anyone is expressly forbidden. Terms & Conditions of access and use can be found at <http://www.tandfonline.com/page/terms-and-conditions>

LAND TENURE AMONG THE AKAMBA

H. E. LAMBERT

This tribe inhabits the Machakos district of Kenya Colony. Professor Lindblom in his book The Akamba published in 1920 devotes only one page to land tenure. A much fuller and more detailed account of land tenure for this sociological aspect is presented herewith.

A brief account of the tribal organisation is necessary to act as a background to the sociological setting of land tenure among the Kamba.

A. The Kinship system

The Kamba of Machakos divide themselves into a number of genealogical sections which may be called parent clans. Each section believes itself to be essentially of one patrilineal blood, that is to say, to have a common male ancestor.

The following is a list of the parent clans now found in Machakos. It is not necessarily entirely exhaustive. Many of these parent clans occur also in the Kitui District. The parent clans are totemic, but the totems of some of them tend to be forgotten. I met several intelligent elders who could not tell me their totems.

PARENT CLAN	ALTERNATIVE NAMES	TOTEM
1. ATANGWA	Abethanze, Abamulia ¹	Mbulusia (Hawk)
2. EOMBE	Abandui, Abanthoka	Nguli (Baboon)
3. ATHANGA BANTHI	Abelia	Kilia (Ironstone)
4. AL (G) WANI	Abambuthu	Ngo (Leopard)
5. AMUUNDA	Abausi, Bamaongo	Luma (Anteater)
6. EYENI	Abamwili, Abanthengo	
7. AKITUTU	Abandewa, Abangai	
8. AKITONDO	Abambuli	Ngunguu (Crow)

¹ The prefix *a* denotes the personal plural. The singular prefix is *mu*. Thus "a person of the Atangwa" is Mutangwa, of the Eombe, Muiombe, and so on. *Ba* denotes "people of, descendants of", and *Aba* "people of the people", thus Abethanze, "people of the stock of Ithanze". *Mba*, having the prefix *n*, is the collective form, "the people of So-and-so considered as an entity". This collective form is found with other substantives, e.g., *asili*, judges, *nsili*, judges as a group, a bench.

9. ATUI	Abanzunzu, Mbamutuoki	Mbiti (Hyaena)
10. AMUMONI	Abandii	Mumo (Fig Tree)
11. AMUTEI		Ndei (Vulture)
12. ASII	Abasuma	Munyambu (Lion)
13. AMBUA	Abambula	Mbua (Rain)
14. ANZIU	Abamuthike	Kindali (Partridge)
15. ANZAUNI	Mbamung'ethia, Abandene	Mbewa (Jackal)
16. AUINI		
17. AMWEI	Abakithi	Mwei (Moon) ?
18. AKANGA		
19. ANGWINA		
20. EKUUWA		
21. AKIIMEI		
22. AKITHUMBE	Mbakathumbe	
23. ANZI		
24. AEI (AEINI)		

Other names are sometimes given as those of parent clans, but they appear to designate sub-divisions of parent clans already in the foregoing list. Thus the Amui, with the lion as their totem, are said to be a sub-division of the *Asii*. Similarly *Amiwa* is said to have belonged originally to *Amuunda*, and *Akituo* to *Atangwa*.

Several of the parent clans are small, at any rate in western Kamba. For example, *Aei* and *Anzi* are practically unknown near Machakos, but occur in Kikumbuliu and Kitui. *Aei*, also called *Mbakeimu*, is said to be a branch of *Amumoni*.

The alternative names given in the list are those more particularly used by the women of several parent clans in special circumstances. There appears to be some confusion between totemistic and other prohibitions, so that one parent clan may seem to have two totems. Thus the Eombe may not eat *nihawaya* (bush buck), and the Ethanga may not touch *yumba* (potter's clay). Each of these is sometimes named as the totem of the parent clan concerned.

As is usual with the Eastern Bantu no very precise distinction in nomenclature is made between the various extensions of the family. The word *mbai* (cf. Kikuyu *mbari*) is used of a parent clan, a major sub-division of a parent clan, or an extended family. Its upper limit may be said to be "people, race", and its lower limit "family". One elder

whom I asked to tell me his *mbai* replied: "Mukamba". Similarly the prefix *ba*, *aba*, *mba* can refer to any kinship group short of the whole tribe. Thus *mbangania* means "So-and-so's descendants, So-and-so's people", and *Mbatangwa* means the parent clan of the Atangwa considered collectively. Important implications of function are discoverable from the context, not from the name itself; thus a kinship group referred to as *mbai* may or may not be exogamous; if it is not, there are sub-divisions of it, also called *mbai*, which are. *Mba* is also used independently as a substantive meaning "family group". Another word used for the family group, that is, the kinship living within one *boma*, is *muvia*—the *v* is bilabial—which is etymologically the same as the Kikuyu *muhiriga* and means originally the entrance through the stockade. In Kikuyu the word has had its meaning extended very widely; a *muhiriga* is a wider kinship than an *mbari*, whereas in Kamba a *muvia* is generally narrower than an *mbai*.

The parent clans in general are very much scattered, and sections of any of the larger parent clans can probably be found in Ulu, Kikumbuliu, Kitui and Mumoni and anywhere else the Kamba have taken root, such as in Digo District and parts of Tanganyika. *Mbai*—scattering, indeed, is not limited to the tribe. The Anziu of the Kamba and

the Anjiru of the Kikuyu are obviously probably identifiable, as are the Kamba Ambua and the Kikuyu Ambura. These identifications, are recognised by the Kamba. Less obvious are the frequent identification by both tribes of the Kamba Atangwa with the Kikuyu Achera, and the occasional identification of the Kamba Eombe with the Kikuyu Agachiku, and of the Kamba Asii with the Kikuyu Angari. I have also heard this last identified with the Aigwani by a Mui-gwani "because they are the people of the Leopard and our totem is the leopard".

Certain of the smaller parent clans, however, are more restricted territorially. Some of them may represent infiltrations from other tribes. Such are the Angoki and the Kana of Mumoni; the former may be Meru in origin, and the latter Meru or Tharaka¹.

But the scattering of most of the parent clans is so complete that a kinship group in any one continuous area is usually an extended family of a few generations only. The Kamba explanation of this fact is not perhaps quite adequate, but it certainly becomes so if we assume a distant change from matrilineal to patrilineal practices, and there is evidence that the change occurred. The Kamba story is that when they immigrated into Ulu their first settlement of any duration was in the Mbooni range where they were more or less confined by the threat of Masai raids or raids by some other warlike and powerful people who dominated the plains. The Kamba had to depend more on agriculture than hitherto and the settlement, temporarily restricted to an area not large enough to produce a livelihood by hunting, began to appreciate the value of the land for cultivation. This was the beginning of the land-kin synthesis so far as the Kamba were concerned. It is said that the original holdings of the parent clans of most of them are still recognisable in the vicinity of Mbooni by their names. This reminds one of the assertion by some of the Kikuyu that there are nine flats of land at Mukurue wa Gathanga (the "birth-place" of their tribe) which were the

¹ Kana is sometimes identified with Aei. The Tharaka clan Ndegi may be the same in origin. Ndegi is the collective form; put into the personal it would be Aregi, or, in Kamba, Aei.

original holdings of the founders of the nine Kikuyu major clans. The following list illustrates the Kamba statement, all the places named being actual areas:

<i>Parent Clan</i>	<i>Original Holding in Vicinity of Mbooni</i>
Atangwa	Utangwa
Eombe	Kiombe
Ai (g) wani	I (g) wani
Amuunda	Muundani
Eyeni	Iyeni
Akitutu	Kitutu
Akitondo	Kitondo
Atui	Utui, Kitui
Amumoni	Kaumoni
Asii	Kisii, Masii
Anziu	Kianziu
Anzauni	Kisau
Auini	Eilui
Akanga	Ukanga
Ekuuwa	Ikuuwa
Akiimei	Kiimei

THE POLITICAL SYSTEM

It was the custom, whenever it seemed safe enough, to hunt for game as an addition to an otherwise scanty or rather dull larder. During such an expedition an individual with a newly-acquired desire for good agricultural land might note a piece of bush-land that he thought fertile. When opportunity occurred, preferably when the rains had started, he would go back and demarcate the area and claim it as his piece of arable (*ng'undu*). Such claims were respected, and in time the search for good land intensified and the finders included bits of grazing to be used as home pastures. As the population pressure in the original settlements increased, such pioneers would move to their newly discovered farms, and group themselves into settlements strong enough to put up a reasonable defence against aggression. Such new settlements were mixed in origin, and a number of new *mbai* would arise in each; the individual founder of a new *mbai* would retain his loyalty to his parent clan and to his totem, but his social milieu would be based on joint

defence and mutual assistance rather than on kinship. For the immediate practical concerns of everyday life the *utui* (a group of homesteads territorially compact) replaced the kinship group. It was, moreover, self-contained; a man could find a wife inside it, for it consisted of mixed kinship; a water supply was near at hand and arable and grazing land available. The *utui* was now a tribe in miniature, self-supporting, socially and economically complete; it had no need of contact with the outside world except to meet or start aggression to protect its herds or to make additions to them. A spiritual continuity based on kinship and a mystic loyalty to the totem were maintained by intercourse between the parent clan and its various offspring clans, but even this was economically unnecessary.

It was this mode of hiving-off and resettlement in smaller units socially and politically self-contained which set the pattern for the future evolution of the tribe. Its results are evident to-day. Each *utui* is an independent unit; it has its own men's club (*kisuka*), its own recreation ground (*kituto*), its own administration (*nzama*) with its own bench of magistrates (*asili*), its own standing army and its own war leaders (*athiani*), and its own place of worship, or rather of entreaty (*kitonyeo kia kiang'ondū*). The Machakos Kamba never developed anything in the nature of a central authority and it devolved on the British to do it, however inadequately, for them. Left to themselves, however, the Kamba might eventually have done so, for the seed of such a development was in their system.

This picture of the Kamba organisation is no doubt too formal, too clear-cut; blurred edges are a characteristic of any Bantu institution. But it is essentially true to life, a faithful picture, though in viewing it we have held ourselves sufficiently aloof to miss the blurring. If we take a closer view we shall see that there is some degree of overlap between any one *utui* and its neighbours. A man who lives near the boundary (not necessarily well defined) between two *motui* may name either as his unit. A *kisuka* or *kituto* may be shared by two or more *motui* which otherwise regard themselves as separate units; disputes

sometimes arise between people living close together but in different *motui*, and a joint *nzama* of the two will deal with them; the *asili* of one *utui* are frequently invited to assist the *nzama* of another; intermarriage between distinct but neighbouring *motui* is very common.

This overlap and blurring find expression in a larger size of unit sufficiently cohesive to be recognised and named. This is the *kibalo* (or *mbalo*), a grouping of *motui* between which social intercourse, particularly intermarriage, is pronounced enough to create a sense of common interest. Formerly a fighting unit was frequently based on the *kibalo*, and nowadays a *kibalo* uses at times a common recreation ground for dancing during the hours of daylight by young people from all its *motui* and has a common place of worship (sacred grove, *ithembo*, pl. *mathembo*) where the suppliant elders, male and female, (*athembi*, *atumia ma ithembo*, *iveti sia ithembo*) of the various *motui* join in sacrifice to the ancestral spirits (*aimu*, sing. *eimu*) and in occasional entreaty of a vague and universal God (*mulungu*, *ngai*). (There is some lack of distinction between the High God and the ancestral spirits in the average Kamba mind. Some elders assert that the ceremonies at the *ithembo* and *kitonyeo kia ng'ondū* have nothing to do with the *aimu* but only with *mulungu*. But *mulungu*, in the minds of many elders, denotes the supernatural—witchcraft is not exactly supernatural, but rather an evil development of human knowledge and experience—and consequently includes the *aimu*. The former assert that the *aimu* are personal to the family or extended family, and communion with them cannot be treated as a function of public or communal sacrifice. Possibly some greater degree of individual personality has been imported into the conception of *mulungu* by comparison with the Mahomedan and Christian Gods.

The elders illustrate the difference between a *kitonyeo kia ng'ondū* and an *ithembo* by referring to the different practices in regard to threats of pestilence and famine. When news is received that an epidemic is spreading towards them all the people of an *utui* gather at the *kitonyei* and are ceremonially blessed and sprinkled with a mixture

containing the stomach contents of a sacrificial sheep, but prayers for rain are offered at the *ithembo* of a *kibalo* by a few (six to ten) of the *atumia* and *iveti* of the *ithembo*, the general public not attending. I suspect that in practice there is no hard and fast distinction between a *kitonyeo* and an *ithembo* any more than there is indeed between an *utui* and a *kibalo*; the latter are, however, terms convenient to the Kamba and ourselves to designate a narrower and a wider unit whose constitutional differences, though recognised, cannot be defined with great precision in differentiated functions.

As there is some degree of overlap between *motui* so, in thickly populated country, there is some overlap between *ibalo*. But no unit of territory larger than the *kibalo* has a generic name. All larger areas are simply referred to as *nthi*, which merely means "country". An *nthi* may have a specific name, but there is no social unity or political institution exclusively belonging to it, except where such has been created by Government (as in locations and sub-locations). *Iveti*, for instance, is now a location with delineated boundaries and a Chief. Formerly it was an *nthi* with no administrative unity; a man who said he came from *Iveti* would not imply that he had any particular regard for or any feeling of common interest with the inhabitants of *Iveti* other than those of his own *kibalo* or *ntui*, though he would certainly know them better than those of any more distant *nthi*.

This, however, does not mean that there were no unifying forces of wider scope than the *kibalo*. In organised East African tribes, apart from the sense of unity created by a common language and essentially common customs, there are three kinds of unifying force, institutional, situational, and individual. In Meru, where the social and political systems are largely based on kinship, there are two institutions which, cutting across the ever-widening circles of the various kinships, tend to hold the tribe together. One is the organisation of the internal government into lodges having no regard for kinship (so that the governing body of every kinship is united in one lodge with those of many others), and the other is the grading

into age-sets based on circumcision. In Kikuyu also there are two unifying institutions, government by generation sequence and grading into ages based on circumcision. Such institutions, cutting horizontally, as it were, across the vertical lines of descent in kinship, tend to unify the tribe. A man's outlook is conditioned not by his status in a kinship only, but also by his status in an institution which runs all through the tribe. They are the skewers, so to speak, which bind the ever-widening circles of a round of beef together.

The Kamba as a tribe are not so well off in unifying institutions. The political unit is the *utui*, of which the unity is based on common residence, not on common kinship, and therefore not on common ownership. There is scarcely any form of government based on lodges with a wider area of jurisdiction than the *kibalo*, and there is no government by generation sequence. Though there is a ceremonial of initiation (*nsaiko*), including circumcision, the age-group (*nthuke*, *iika*) is not dependent on it and the division of adult males into ages (*aanake*), young men, *nthela*, young married men, and *atumia*, elders) is somewhat indistinct; the age depends on function rather than the function on the age, and the division into ages has little if any unifying power. In Kamba it is the kinship system which cuts across the *motui* organisation and runs all through the tribe. It has a certain binding force because there is still a spiritual loyalty to the parent clan and to the totem.

The differences between the three tribes cited for comparison are not quite so clear cut as the foregoing might suggest. In Kikuyu also and less obviously in Meru, the kinship system runs all through the tribe, but the political emphasis, particularly in Meru, is on the land-kin synthesis so far as kinship is concerned; in Kamba the synthesis is politically of little consequence.

In Meru not only does the age-set (*nthuke*) cut across the kinship group (*mwiriga*) but it cuts across the administrative caucus (*njuri*) also. There are, as it were, three axes, each cutting across the other two, and an individual's status is defined by three co-ordinates relative to these. His attitude is three-dimensional. In

Kikuyu also the age-set (*irua*, *riika*) cuts across the administrative generation (*riika ria Maina* etc.) as well as through the kinship group (*mbari*), and the individual's attitude is three-dimensional. But in Kamba the administrative system is largely bounded by the *utui* and the age-set scarcely counts outside it; the individual's attitude is definable in reference to his *utui* and his *mbai*. If the Kamba's attitude is three-dimensional it is in respect of his *utui* and occasionally of his *kibalo*, never of the tribe. To the latter his attitude is one-dimensional.

Various factors (predominantly the recent clash of cultures) have tended to reduce the loyalties pertaining to the different institutions. A three-dimensional solidity assumes a two-dimensional quality of little depth; the individual attitude is on the surface, shallow. This is very evident in Kikuyu (except perhaps in Gichugu and Ndia). The administrative sequence has almost faded out, and there is now a rapidly diminishing loyalty to the other two institutions; the land-kin synthesis is breaking and the traditional respect for seniority in age-set will soon, apparently, have vanished. When the final stage is reached the individual's status will be defined by no co-ordinates, his attitude will be non-dimensional, and the out-and-out Kikuyu egotist will have emerged, unless some new loyalty or set of loyalties arises to retain him spiritually within the herd. Much the same thing is happening institutionally in the Kamba *utui*; if there were no *utui* oath (and even that is losing its potency) the *utui* would probably end as a congeries of individualists whose only common interest was a common residence. As for the Kamba tribe, already one-dimensional, a further weakening of the kinship bond, of which the signs are by no means lacking, will leave the individual tribesman non-existent tribally; his *utui* will still convey some meaning to him, but his tribe will not. The Kamba "tribe" will then be a tribe no longer, but a miscellany of independent, self-sufficing parishes unrelated to a county or a country (the *nthi* of the Kamba). That, at least, is what would happen if Government or the situation did not intervene to create a unity which

the Kamba, left to themselves in the new conditions, would have found it difficult to attain. The probability is that they would not have tried.

Nowadays the Government and the situation are much the same. Formerly the need to meet a situation in concerted action could unite a number of independent *motui* or *ibalo* into a wider unit whose cohesion would remain so long as the situation lasted, but generally no longer. An exceptionally severe and lengthy drought would turn the minds of the elders over a wide area to the traditional practices of earlier days when the tribal pattern was based on kinship groups each with a special function in relation to the whole. The Ambua ("the People of the Rain") had failed in their official duty as controllers of precipitation and human sacrifices would have to be resorted to. The Priestly clan, the Anziu ("the Blacks"), concerned with tribal sacrifices, would be called on to perform it. If possible a young girl of another tribe would be kidnapped and sacrificed by burial alive; otherwise the Ambua would have to provide a girl, and the tribe, or the portion of it most concerned, would compensate the mother; some elders say that the Anziu sacrificed a girl of their own; hence the alternative name (Abamuthike, "people of the buried one") sometimes used by the women of this parent clan. There was thus a temporary unity based on an ancient tribal custom, but the unity had been invoked by a widespread situation and would end when the situation ended. Each such act, however, would revive the memory of common origin and common custom and help to keep a tribal loyalty alive.

War was another situation which could unite a number of *ibalo*. Persistent aggression against an area by an enemy force stronger than the army that a single *utui* or *kibalo* could put into the field would be met by a joint defence to prevent the smaller units from annihilation in piecemeal operations. There was an *ad hoc* binding of the units by an oath of allegiance sworn by the warriors of them all. A hole was dug in the ground and seven arrows placed round it with their heads pointing to the centre.¹ Every warrior then spat

¹ Seven is the most important of the "sacred numbers"

into the hole, swearing not to desert his new comrades. But when the situation ceased the alliance ceased as well.

Another situation which could create a temporary unity of purpose over a wide area was the judicial killing of a persistent evil-doer. The decision to impose such capital punishment and the execution of it were the respective functions of a joint *nxama* and a joint executive (called *king'oli* when convened for this particular purpose).

Certain events arising from the customs common to the tribe would occasionally lead to situations with some degree of unifying force. Such events were institutional in origin but sporadic and situational in operation. Dances in connection with the initiation (*nzaiko*) rites afford an instance.

Another type of bond, the economic, was situational in character although it expressed itself particularly in an economic institution of considerable continuity and permanence. This institution was the market (*king'ang'a*, pl. *ing'ang'a*).

It was not restricted to the *utui* or the *kibalo*. In normal times it was regularly attended by the people, especially women, living over a much wider area. But its unifying influence was not so great as might reasonably be expected. It was essentially a place where commodities could be obtained and family shortages made up in exchange for family surpluses. Though there was a constant buzz of conversation most of it was due to haggling and had no political significance. Even tribes persistently at enmity with one another frequently maintained a common marketplace for peaceful barter so that they could satisfy their several economic needs. There was an obvious mutual advantage in the institution but the attitude of the individual *utui* to the *king'ang'a* was entirely selfish.

Nowadays the most important situation to the Kamba are those created by the Government. The most obvious are those imposed by the system of administration and instruction adopted and is usually avoided. The use of the indeclinable *moanza*, seven, in place of an original declinable word, now apparently forgotten, is itself an instance of such avoidance.

by the Government. The functions of the District and departmental officers, the Chiefs, the Local Native Council and the Native Tribunals are outstanding; they all have a unifying force because their areas of jurisdiction are wider than any territorial unit contemplated as a political entity in the untouched Kamba system. The Local Native Council and the Native Tribunals, being a local government and a local judiciary, were intended by the Government to be institutional. But, as envisaged by the average Kamba, they, like the Chiefs and like the Government itself, are situational. But they have their unifying power, and this power is persistent because they themselves persist and continue to perform their functions. In time, with a guaranteed persistence, they will probably develop into institutions. But whether they will be institutions satisfying to the Kamba and whether unifying power will suffice to substitute a tribal outlook (in regard to land control, for instance) for the present tendency to think parochially and the trend towards an anti-social form of individualism are other matters. They were not outgrowths of Kamba ethos, though they were certainly constituted, at least in part, as imitations of imaginary extensions of the Kamba system. But the imagination was somewhat faulty, and the extension imitated were Europeomorphic, not so much in constitution as in practice and procedure.

Other Government-created situations occasionally unite the people of the area affected in a common purpose. Destocking campaigns and prohibitions against grazing stock outside the demarcated tribal lands are instances. The reaction to such a situation has, however, hitherto been entirely negative. It has been an opposition to a situation, not a constructive tribal effort to overcome the threat which led the Government to create the situation. It is a spurious unity intended to promote their selfish ends despite the common danger. Objection to a method (as, for instance, of de-stocking) is often justifiable, but, if the premises are admitted, not unless an alternative, equally effective and readily undertaken, is offered by the opposition.

As to the individual type of unifying force, in

the past various personalities have exercised an influence far beyond their own *motui* by reason of their quality as leaders. Among the Kamba, as among other peoples, men are occasionally born with an outstanding gift of leadership and such men have undoubtedly helped to preserve or to create loyalties to units wider than the *utui*. Kivoi, the friend of Krapf, and Masaku, after whom Machakos is named, appear to be men of this sort. Of greater permanency and therefore more importance are the threads of personality which permeate the tribe continuously, because the Kamba have a deep regard for individual prowess and individual erudition, indeed for every form of individual achievement other than the anti-social. The reputation of a particularly successful medicine man (*mundu mue*) is not confined to his own *utui* or *kibalo*. Wealth (as expressed in wives and cattle) commands widespread respect. Functionally the most important aspect of this principle of personality-spread is that concerned with the judicial system. Judges famous for their knowledge of customary law, their skill in the interpretation of it in individual cases, and their wide acquaintance with accepted precedents, are frequently invited to assist the local courts, and may come from distant places for the purpose. Expert advocates may similarly be called in by the parties to a suit. Such practices tend to unify the tribe by maintaining a unity of law and custom.

A wealthy man may sometimes satisfy his vanity and enhance his reputation by giving an enormous party to which he may invite all the important personages over a wide area. This may be in celebration of some particular event in the family, such as his own preferment in the *nzama* or his senior wife's initiation as a *kiveti kia ithemgo*, and the young people for miles round may receive a general invitation to come and dance and take refreshments at the host's expense. Such a dance is distinguished from the ordinary *utui* or *kibalo* dance by being called *mboka* instead of *wathi*. Such parties make for friendly intercourse and understanding over an area larger than the *kibalo*, and may lead to intermarriage between *mbai* in widely separated units.

In tribes whose political systems are based on extensive kinship settlements intermarriage is a potent unifying influence of the individual type. But in Kamba, where the political unit is self-contained in kinship units which can intermarry, it has a relatively insignificant force in practice. Young men can find their dancing-partners, girl-friends, and potential wives next door; they need not leave their units to go and look for them elsewhere. This, however, is not to say that they never do. None the less it is comparatively rarely that they go outside their own *ibalo*, and one of the most intense forces of cohesion in the *kibalo* is the frequent intermarriage between its several *motui*.

One other unifying force of the individual type which merits notice is the Kamba treatment of their cattle. It is only rarely that a man keeps all his cattle together in one place, and a wealthy family may have its herds very widely scattered. This has a unifying influence because such a family, based on one *utui*, may have interests and even portions of itself (junior wives or sons, for instance) in many others. It is the scattering which creates the unifying influences, not a subconscious sense of the need of unity which creates the scattering; but some pre-existing sense of unity must be inferred, for otherwise the scattering could not occur with safety. No doubt the practice has its origin in the principle that it is unwise to have all one's eggs in one basket. What the Kamba feared were deaths from local droughts and localised disease; they also feared compulsory de-stocking—by the Masai. These same fears persist to-day, except that for the Masai we must substitute the Government.

The mere existence of a common grazing-ground had little unifying power. For the common grazing was not regarded strictly as a commonage; its tenure was not communal. It was rather in the nature of a no-man's-land, the use of which, as pressure on it grew more and more intense, would set up rivalries between the users rather than create a sense of unity of interest in user.

It is thus evident that the Kamba were badly off for unifying forces. The mode of settlement tended to disintegrate the tribe because the dis-

crete elements collected into units (the *motui*) which were self-contained and almost independent statelets. The only institutional bond continuously in operation consisted of the threads of kinship running through the whole. Apart from this and the natural sense of unity arising from a similarity of speech and customs and tradition, the only binding forces were temporary and, in general, localised. They were situational and personal. There was no continuous central government, and even in comparatively small areas any form of government with a jurisdiction wider than the *kibalo* was entirely situational and temporary. None the less the principles of government were easily capable of extension to cover any area. The significance of this fact will be evident when the setting up of land authorities is discussed.

We are now in a position to define, or rather to describe succinctly, since any exactitude in definition is impossible, the various social and political units which are concerned in the Kamba system of land tenure.

An *mbai* (pl. *mbai*) is a kinship group of any size from the tribe down to the *muvia*. For some considerable time the kinship group has been patrilineal in pattern and marriage patrilocal. The parent clans, the names of which are still remembered and associated each with its own exclusive totem, may have been matrilineal. No parent clan is now associated, except traditionally, with any particular area, and even in a parent clan's traditionally associated area the land owning sub-*mbai* do not exclusively or predominantly belong to it.

A *muvia* (pl. *muvia*) is an extended family, generally covering three or four generations only, that is, a man together with his sons and grandsons and their wives and families. It is a patrilineal unit. Brothers, half-brothers, and paternal cousins who have a common paternal grandfather and live together in one area are, together with their wives and children, called a *muvia*.

A *musyi* (pl. *musyi*) is the homestead of a family, multiple family, or extended family living together. It is generally surrounded by a stockade (*mathanzu*). Each wife has a separate hut. The

entrance through the stockade is the *muvia* (this brings the Kamba into line with various other tribes who call the extended family by some word which means doorway, e.g., *mlango*). Outside the *muvia* is an open space (*thome*) where the men sit, drink, and talk after the day's work. Some etiquette of seniority is observed among them. In Kitui the meaning of *thome* has been extended to denote an administrative sub-division of a location. A *musyi* may contain one hut only or a considerable number, and when a man talks of his *musyi* he may be referring to the whole *musyi* in which he lives or to his own particular portion of it, according to the context. The word *musyi* is generally mistranslated "village"; the Kamba translate it *boma* when speaking in Swahili.

The *utui* (pl. *motui*) is the political and politically territorial unit. The word is derived from *tua*, dwell. The people living in an *utui* are usually of mixed *mbai*. There is accordingly no natural bond between them requiring mutual assistance and good behaviour. An artificial bond by oath is therefore made to serve a similar purpose. The *utui* oath is of the social type (*ndundu*) as opposed to the judicial type (*kithutu*). Every new resident has to swear the *utui* oath, no matter how many *utui* oaths he may have sworn in other *motui*.

A *kibalo* (pl. *ibalo*)—also called *mbalo* (pl. *mbalo*)—is a large *utui* or group of *motui*. There is no *kibalo* oath, and except as may be required on special occasions, as in war, no oath of mutual allegiance covers the whole *kibalo*. There is generally a common place supplication (*ithembo*) and consequently some degree of religious unity between the *motui* of a *kibalo*. The *mundu muc* occasionally proclaims a special day of prayer; such a day is called *ngone*. Probably the strongest forces holding a *kibalo* together are those induced by inter-marriage and friendships arising from propinquity. Though it is scarcely reinforced by any ritual sanction the bond is functionally quite real.

The *kisuka* is the men's junior club. It is a social club whose main business is conversation during a joint meal. Its members are married

men. They pay an entrance fee in stock and honey-beer, and they attain to the various grades of seniority in the club by further payments. In a sense there may be said to be one *kisuka* for the whole tribe, as the institution is much the same all through it, and a member on a temporary visit to another *utui* may take part in its *kisuka* feast without extra payment provided his credentials satisfy the local club. This, however, is a sort of occasional reciprocation, and the *kisuka* as an institution has little if any continuous binding force between distant *motui*. This is evidenced by the fact that the word is often used in the plural (*isuka*) and then denotes the separate clubs of more than one *utui*. Inside a *kibalo* there is considerable intercourse between *utui*, but this is generally brought about by invitations to individuals. So distinct in fact are the *isuka* from one another that the Kamba sometimes name the *kisuka* as the territorial unit. If the *utui* is a large one it may have two *isuka*, and if it is a small one it may share one *kisuka* with another small *utui*. But generally speaking the word *kisuka*, in so far as it relates to land, is synonymous with *utui*. At least in Ulu the *kisuka* acts, or used to act, as the executive of the *nzama*. If this meant execution of the *nzama*'s judgement in another *utui* the two *kisuka* or junior *nzama* members sent would first report to the *nzama* there. The *nzama* of the two *motui* would probably have heard the suit jointly. In any event if the *nzama* of the *utui* where the judgement-debtor lived was satisfied as to the justice of the sentence or decree it would provide two of its own executive, *kisuka* members or two *nzama* members, to accompany the first and execute the judgement with them.

The *nzama* is the men's senior club. Its members are *atumia*, elders, including "honorary" *atumia*, childless old men. It is a social club, but it has important public functions connected with administration and judicature. The word is now used to denote the native courts created by the Government. The *nzama*'s social meetings are conducted much like those of the *kisuka*. The members sit in a circle lacking an arc. At one end sits the most senior member and at the other the most junior, the rest being in order of seniority

between the two. Seniority is determined by the number of payments made (the most junior member normally being one who has just paid his entrance fee) and is indicated by the portion of the slaughtered beast to which a member is entitled at the feast. When a man has made sufficient payments to entitle him to the choicest portion any further payment he may make will put him outside the circle. Theoretically there is a constant moving up and out so that each man acts as chairman in his turn. In practice a man who has attained the highest seat frequently refuses to make a further payment and stays there till his son removes him. There is a customary avoidance between father and son (real, not classificatory) in the *nzama* circle. Often a man will leave the circle altogether as soon as his son becomes a member (this is reminiscent of the administrative alternation of the generations among the Kikuyu, and operates in a similar though much less formal way). Sometimes a man stays on until his son has reached a seniority (by payments) which puts the son two seats below himself and then leaves the circle altogether, since one more payment by the son may put them next to one another, apparently an impossible position. That this custom actually reflects a principle of replacement of one generation by the next in social and administrative functions appears to follow from the fact that the father has no place henceforward in the circle. If he attends at all he sits outside it, takes no part in the discussion, and is lucky if he gets the bits left over after the rest are served. All that remains to him is the respect due to age. But if he is a particularly intelligent man his opinion may be sought.

It would be a mistake to infer from the foregoing description that the indigenous judicial system depended on a social club, or that an individual judge's influence and position on the bench were contingent on his ability or inclination to fill his brother justices with meat and beer. Though, other things being equal, wealth would help, personality, intelligence, knowledge of the customary law—especially of case law—and a reputation for fair dealing were the characters

that counted most. In particular, men of such qualities were chosen to represent the unit in inter-unitary affairs. The *nzama* elders were given different designations according to their functions at the moment. It was not every *mutumia wa nzama* who regularly joined the bench of justices; one who did so was called *musili* (*sila*, join in a law suit, judge a case.) The *asili* were the individual members of the bench (*nzili*), but *musili* acquired the secondary meaning of one "skilled in the law" and "a local law-giver", and so the leading personality of a unit. Nowadays the word is used by Government to denote a local personality, a sub-sub-headman. *Munene* meant "a big man, an important personage", but by no means all *anene* acquired their greatness in administrative functions; outstanding wealth and a forceful egotism would be enough. A *kibalo* was often called *kia ngania*, "of So-and-so", *ngania* being the *munene*, as an alternative to its local name. Nowadays *munene* is used for "chief, official headman". An elder who was recognised as a man of dialectic skill and convincing personality, and consequently suitable as a representative of his *utui* or as an ambassador to another *kibalo* or even a different *nthi*, was known as an *mbinga* (pl. *mbinga*), but nowadays this word has acquired for many a disreputable significance and is applied sometimes to a man who sets out secretly to stir up strife, a scandal-monger. A safer word to use for an honest representative is *mwalania* (pl. *alania*), an intermediary, a pacifier.¹

Although the *nzama* oath which the individual member swore when he was first admitted was considered valid throughout the tribe so that he was not required to swear another oath when, on invitation, he joined in the proceedings of the *nzama* of another *utui*, the *nzama* was in practice very much *utui*-bound, and if he joined the other *utui* permanently he would have to swear another oath according to the local formula, which might be slightly different.

¹ Highly respected elders are commonly distinguished from the rest by being addressed by their father's names instead of their own. Thus a man named Munubi wa Nginya, having achieved greatness, would be addressed as "E Nginya" not as "Munubi".

Altogether it may be safely said that though the average Kamba's political horizon was at no small distance his customary vision was myopic; he rarely looked beyond his own *kibalo*.

B. The System of Land Tenure

Probably the simplest approach to an understanding of the system of land tenure now obtaining among the Machakos Kamba is by way of its traditional evolution since the tribe first occupied its present territory.

If we discount the statement of many Kamba that the tribe has always occupied its present country (which statement has possibly been reinforced by political considerations), the strongest tradition is that the tribe was at one time in Tanganyika Territory, probably in the vicinity of Kilimanjaro; there is a very considerable Kamba element in the Chaga make-up. This same tradition puts the Kamba at that time in close proximity to the Nyamwezi, from whom they subsequently parted, the Nyamwezi moving towards Lake Victoria, and the Kamba by way of the Tsavo river to the region of Chyulu. Kamba is said to be a place-name in the Nyamwezi country. This in itself means very little. But the fact that the Kamba still maintain *utani* (the so-called joking relationship or yituperative alliance) with the Nyamwezi (and apparently with no other tribe) seems to be inexplicable on any ground other than that the two tribes were in contact at one time or another. The Kamba elders actually go further, and say that the *utani* demonstrates an actual (not ritual) blood relationship; the two tribes, they suppose, were at one time one.

From Chyulu the Kamba moved to the Mbooni hills, and for a considerable period were more or less confined to that area by war-like cattle-keepers (the Masai, according to the Kamba). During this period the tribe increased comparatively rapidly and had to take more seriously than hitherto to agriculture. Here the patrilineal land-kin synthesis was developed, and here, too, probably, patrilocal marriage became the vogue. The original settlement would seem to have been by matriclans, the forbears of the present parent clans, or at least of some of them.

As the holding and inheritance of land were grafted on the patrilineal kin (possibly a gradual process) the original areas of settlement of the several matriclans would become divided up between numerous patriclans each taking the name of its founder; each matriclan would then be scattered through the tribal settlement and each contain a number of recently founded patriclans. Each patriclan would retain its founder's totem and be regarded as a sub-division of his matriclan. That the parent clans were really matriclans originally is suggested by the fact that a man may marry a girl of his parent clan provided no relationship between them through the male is traditionally remembered, and that marriage was originally matrilineal is suggested by the fact that a man must obey the prohibitions of his wife's parent clan; she also must keep the rules of his, but that is "because a member of his *mbai* may be in her womb".

It would seem then that the present territorial pattern of the tribe, the scattering of kinships in relation to the land, was quite possibly established even before the spreading from Mbooni.

The next stage appears to have been an overcrowding of the original settlement. Individuals or groups of individuals braved the Masai threat and settled in the *wau* (land hitherto unoccupied except sporadically by nomads). An individual marked an area sufficient for a homestead and agricultural lands. He cut bush and branches to indicate the piece of land he claimed as his and he planted a handful of seeds of some annual food crop to show that he intended to use the land for agriculture. Other individuals did the same, and though the demarcated areas were kept distinct there was naturally a tendency to group such areas together for mutual assistance, particularly in defence. The individuals of any such new settlement were not necessarily or even ordinarily of one parent clan. This is readily understood, particularly if our conjecture as to the disintegration of parent clans in the original settlement is near the truth. Thus arose the *utui* system of residence, based on territorial proximity, not on common kinship.

The agricultural holding acquired in this manner

by an individual was his *ng'undu*. The Kamba may have had cattle when they first settled at Mbooni or they may have acquired them later possibly by theft or capture from the Masai. It is probable that when they entered the Machakos district the Kamba were mainly hunters. If they were poor in stock it would seem unlikely that the Masai would bother with them and the aggression was probably on the part of the Kamba. On the other hand this restriction to a limited territory may have been caused by fear of slave-trading caravans. However that may be, the tradition is that the first newly-demarcated lands were intended for cultivation purposes only. But later, it appears, exclusive grazing grounds were also demarcated. Such a grazing ground was called *kisese* (pl. *isese*). But the word is somewhat loosely used. The *ng'undu* holding was originally larger than the family's agricultural requirements and some of it would naturally be used for grazing; this portion, though remaining part of the *ng'undu*, was known as the *kisese*; it might be fenced to prevent livestock from encroaching on the cultivated lands. On the whole I am inclined to think that originally a *kisese* was nothing more than a cattle-pen and thence a partly fenced-off portion of a family's or extended family's *ng'undu*. In Tharaka the word *kicheche* is used with very much that meaning. This would bring the Kamba into line with the other peoples of the Province; all grazing would be communal, but the owner of a piece of land (Kik. *githaka*, *ng'undu*) could take such reasonable measures as might be necessary to protect his crops; he could also close a portion, or the whole of his grazing for any good reason, as for instance if he wished to cultivate or rest it, but such a closure would be indicated not by actual fencing but by various signs recognised by the people generally, and would apply as much to his own livestock as to theirs. This condition, however, does not appear to have been customary among the Kamba, probably because there was originally ample *wau*, that is, grazing land unclaimed by anybody, whereas the *ng'undu* was primarily agricultural land chosen and demarcated for that purpose. When a family's cattle increased in numbers so that it was inconvenient or impossible

to graze them on the uncultivated portion of the *ng'undu* they were taken to the commonage (the *weu*). A further increase would mean that it was now not even possible to house them on the *ng'undu*, which might in any case be at a considerable distance from the portion of the *weu* actually in use, and to return his herd every evening would involve the owner in a risk of damage to crops, not only his own but his neighbour's also, because good agricultural land was found in patches, particularly in the river valleys, and would have been comparatively quickly taken up. He would then establish a cattle post (*kiengo*, pl. *siengo*) in the *weu*, and either move there himself or send a son or other relative or friend to live there. He would enclose a fair sized area round the *kiengo* because it would serve him as a reserve of grazing when the *weu* grazing was getting thin in the vicinity of the *kiengo* and when, as in wet weather or when there were Masai about, it was unwise to graze them very far afield. Such an enclosure would be respected, but if the elders of the *utui* or of two or more *motui* who used the *weu* thereabouts for grazing thought he had taken more than a reasonable amount of land they would stop the fencing or pull down the fence already erected and show him where he could put it without their further disapproval. The enclosure would then be *kisese*. But a necessary condition was that he should establish a *kiengo* with a man in charge or a *musyi* for himself or for his son and daughter-in-law or other related family from the same *utui*. He could not simply demarcate an area as his own exclusive grazing to be reserved for future use. He could take enough for his reasonable immediate needs and add to it later as his needs increased provided there was land to spare, but in an area of *weu* getting overcrowded with *isese* he would very likely be required to reduce the area enclosed. As cattle became more important in the Kamba economic system family heads tended to establish their *misyi* in their own *isese*, the women going to the *ng'undu* for their agricultural work each day and returning to the *misyi* to do their household chores and spend the night. Nowadays a *musyi* is associated with a *kisese* rather than an *ng'undu*, and the elders hearing a claim for pos-

session of a *kisese* require good evidence that the claimant had a *musyi* or a *kiengo* there, occupied by himself or by somebody on his behalf.

This then is the real *kisese*. Whatever the original meaning of the word (probably nothing but a cattle kraal), it now implies an exclusive grazing area, individual or shared by neighbours, demarcated at a semi-permanent cattle post established in the *weu*. The cattle-owners or their sons or agents live there in *misyi* or *siengo*. When *misyi* are founded, which means that women live there and store their harvests there, we have the nucleus of an *utui*.

But a man may keep his cattle on his *ng'undu* and call it his *kisese*; there is a certain amount of glamour about the word *kisese*—it implies the ownership of cattle. But the moment there is some dispute about the ownership of the *ng'undu* he will call it his *ng'undu*, not *kisese*, for the title to *ng'undu* is perpetual, whereas the title to *isese* depends on user.

The sense of ownership of a *kisese* was never as strong as the sense of ownership of an *ng'undu*. The *ng'undu* was regarded as a necessity because it meant subsistence and subsistence was generally recognised as a primary right of every Kamba. But though the Kamba nowadays profess to hold the view that cattle are an absolute necessity they formerly regarded them as something of a luxury. A man could not claim a *kisese* as an individual right unless he had the cattle to make a cattle post essential. Both the new *ng'undu* and the new *kisese* had been established in the *weu*, which was no man's land, but the *weu* was usable for grazing by the tribe at large; the fundamental attitude to grazing, with the Kamba as with the other Eastern Bantu, was that it was communal; land which had never been in use for cultivation was still available for grazing by anybody's cattle. The *kisese* demarcated at a cattle-post was excluded from the *weu* just as long as it was used; a man who left his *kisese* but intended to return and use it once more could keep his claim alive by keeping an agent there or by frequent visits and reminders to the occupiers of neighbouring *isese* that he intended to return; otherwise the *kisese* reverted to the *weu*. But in theory the *ng'undu* never

reverted to the *wetu*, and in practice very rarely did so. It is in this sense that the frequent definition of a *kisese* as a "temporary exclusive grazing ground" is partly justified.

This method of acquiring a new *ng'undu* or a new *kisese* is the basis of the Kamba statement that the outright sale of land was always customary among them. When an enquirer asks a Kamba elder about the traditional possibility of outright sale he is struck at once with the elder's change of countenance, at least if the elder has himself made use of the modern possibility of purchase. The usual candid and sincere expression of the average Kamba elder's face and his willingness to talk about the customs of his tribe give place to a disingenuous expression and a somewhat halting answer which sounds to the enquirer indicative of mental reservation. The reason is that the answer, when it comes, is only partly true. "From the start a man could do exactly what he liked with his own *ng'undu* or *kisese*" is literally quite true if we interpret "from the start" as meaning "at the start and in certain circumstances thereafter", but there is a quibble in the qualifying phrase "his own". The sophism is rendered possible by the fact that the precise meaning of the phrase is conditioned by the context and is not discoverable in the actual wording used. The sophisticated elder, for political or selfish reasons, generalises the particular. A man who has acquired a piece of land by excision from the *wetu*, assuming that his neighbours had not objected to the demarcation of the area, could treat it as his own in every sense, subject to the one condition that he used it for its proper purpose. If one asks the elder; "Could he sell it?", the answer is: "Yes, certainly", followed after a lengthy pause by: "But he never did". In other words excision from the *wetu* implied a need for land and an actual use of it. Land-grabbing for the purpose of speculation would not be countenanced, and no doubt was never even contemplated in the early settlements. In those days, in fact, acquisition was contingent on beneficial occupation. None the less the individual settler *could*, in certain circumstances, do as he liked with the land he had personally pioneered,

because that piece of land was not yet subject to either of the two conditions which, according to the usual Bantu law, could qualify his right to do so, viz., ownership impersonally extended through a kinship, user only being differentiated, and extension of the owning kinship backwards to include a generation now no longer in incarnate occupation of the land. This last, so far as the Kamba are concerned, appears to be hypothetical; there is little, if any, factual evidence to suggest that the "spiritual ownership" of land was ever powerful functionally among them, but the sense of continuity of kinship based on a common spiritual father to whom sacrifice was made would tend to reinforce the first condition. If some circumstance arose (a comparatively rare event) which induced the individual pioneer to leave the area for good he could dispose of his piece of land in any way he liked. He could give it away, or sell it (if a buyer was forthcoming), or he could leave it to his sons (dividing it between them if he preferred to do so). Theoretically he could bequeath it in any way he liked. But if he died without disposing of it he would, in a sense, continue to be the owner, and the land would then be subject to his "spiritual ownership". Henceforward his descendants would hold the land in trust; they would have the user of it, but it could never be divided up in such a formal manner that portions of it could be sold outright. If before his death the original pioneer had divided the land between his sons, showing them the boundaries, each son could dispose of his own portion as he liked, though in practice he would offer it to his brothers first from a sense of loyalty to his own kin, more particularly because it had belonged to their common father. A similar rule would hold for every subsequent generation, viz., if each of the preceding generation had divided up the land completely the whole *ng'undu* or *kisese* was held in severalty and, subject to the usual courtesy to his brothers who must first be given the chance to "buy back their father's land", each portion could be disposed of by its owner. But if, in any previous generation, a portion had not been divided up between the sons of a man who had inherited it in severalty no

disposal of it outside that branch of the family was ever possible again; it was subject to the "spiritual ownership" of the founder of that branch. Nowadays the sense of "spiritual ownership", if there ever was one, has its power, and among the modern Kamba the more sophisticated (not yet by any means a majority) hold that if a man has failed to divide his land between his sons they, or a subsequent generation, can do it by arrangement among themselves. The tenure of land in common, based hypothetically on the sense of "spiritual ownership", is giving way to tenure in severalty. The former principle was common tenure by the kinship actually in occupation and, in respect of an *ng'undu*, severalty in user, the individual users being wives. The same applied to cultivated portions of a *kisese*. The modern principle, or the principle which modern thought is tending to adopt, is severalty in tenure, the individual holders being sons of the wives of the previous occupants of the several portions by reason of their mother's user of them. In this we need see nothing but a more complete development of the patrilineal principle at the expense of the matrilineal, though there can be little doubt that the economic situation and the trend to individualism have speeded up the process. This development, together with the weakening of whatever sense of "spiritual ownership" there may have been, has resulted in the present tendency to recognise the individual's right of outright sale no matter how his ownership or share in ownership arose.

In the minds of most, however, this right is still conditioned by two principles. The first rests on the reversionary rights of kindred and explains the facts sufficiently without invoking "spiritual ownership". When a man dies his nearest patrilineal kin inherit. They have an interest in his land even though the total holding of the kindred may be held in severalty. They can therefore intervene if he tries to sell his portion. In practice this right of intervention operates in two ways. First, he must get permission from his seniors and equals (in generation) in the kindred living on the spot (that is, in general, in the same *utui*), and second, he must offer them the chance

to purchase before accepting any offer from outside. This theory of the power of the potential heirs to intervene, if carried to its logical conclusion, would mean that every kinship in the parent clan, and indeed the tribe, could put a stop to any outright sale, and it is on this theory that the tribal conception of its ultimate concern in the ownership and user of the tribal land depends. But in practice any intervention by relations more remote than those normally in actual residence in the vicinity, if it occurred at all, would be directed to the elders on the spot, that is, the intervener would try to persuade the local kinship to exercise its power of veto. In the case of successive sales of the same piece of land, however, an objection might be lodged direct from a distant area since the local power of control might be slight or non-existent.

Even a close relative on the female side could intervene to stop a sale. Such intervention would have no legal force, but it could be very powerful in practice. In particular the maternal uncle (*inaume*, that is, "male mother"; "my maternal uncle" is *māma*) could, and frequently would, raise objections to a sale which meant eviction of his sister from her cultivation rights. His influence on his nephew was always strong; his objections would be very seriously considered and his generation's equals in the nephew's kin would almost certainly support him. The father-in-law or brother-in-law (*muthoni*) could also intervene on behalf of his daughter or sister or her children.

The other principle which conditions the right of outright sale affords an indirect control and rests on the right of the *utui* elders to refuse permission to any individual to settle in its territory. An intending purchaser could be refused the right of domicile and consequently, unless he was buying for speculation only, would see no profit in proceeding with the purchase. The *utui*, as an independent state, has the right to regulate its population, both in regard to number and to character, by controlling immigration.

As pressure on the land increased the process of hiving off and setting up new homesteads and demarcating new *ng'undu* and *isese* was continued.

It was the sons who searched the *wetu* for cultivable land, and frequently they who set up new *siengo*, demarcated new *isese*, and established new *misyi* on them. There were certain kinship rules which affected the pattern of inheritance in those early days. Generally it was the first-born son (*ikithathi*) who went out first to find new land. There were two good reasons for this. If a younger son had gone his elder brother could not join him afterwards, whereas younger sons could always join their elder brother and share his *ng'undu* and *kisese*, and the latter would, if there were space available, make provision for them when he chose the land. The other reason was that it was the duty of the last-born son (*ilumaita*) of any woman to stay behind and protect her interests and generally look after her in her old age. He remained as guardian of his mother's portion of the family land when the rest had left it to go and find new land elsewhere. As each brother left in turn the youngest of them added that brother's share, or potential share, to his own and eventually inherited the whole. If his father had only had one wife it meant, on his father's death, that where there had been one man before there was only one man now. The principle therefore operated strongly to prevent an over-fragmentation.

The pattern of land-inheritance was, by reason of this duty of the youngest son, a form of ultimogeniture, rather like borough-English, except that it could be complicated by the practice of polygyny, much more common then than now because (apart from European wars) the death of warriors in battle, raids, and brawls was at a higher rate, and prostitution was not then a rival to a normal married life. (Girls captured by raiding parties added to the brides available but this factor worked both ways.)

I think, however, it would be correct to say that ultimogeniture was the custom rather than the law. It was only possible as long as there was ample land, and even then the youngest son certainly had no legal right to exclude his older brothers. If one of them came back for any reason, possibly having failed to get the sort of land he wanted or having found his new *ng'undu* or

kisese too exposed to enemy attack, he could re-assume his seniority and his share in user. Even if his brothers had settled permanently elsewhere the youngest could not treat the land as entirely unconditioned by their existence. He certainly could not alienate it without their sanction, and certain choice portions, such as a *kianda* (pl. *sianda*), a rich garden especially suitable for sugar-cane and grain-crops, or an *uyau* (pl. *mayau*), an irrigable field, would usually still be subject to the rule of sharing. On the contrary, it may be said that the seed of primogeniture was in the Kamba system and simply waiting for the right environment. The first-born son of the senior wife, if he was old enough on his father's death, assumed his functions in respect of the other sons and was regarded generally as the new head of the family. In regard to property, though all the brothers were theoretically equal, he would frequently award himself a larger share (if his father had not already done so) and his juniors would acquiesce. If he were not yet old enough to undertake the family headship, but had a half-brother (that is, by another of his father's wives) who was, the latter would act as regent and instructor until he could take his rightful place. The present position seems to be half-way between the two, ultimogeniture and primogeniture. Neither the first-born nor the last-born son gets any great advantage in regard to land; all the brothers (sons of one woman) share more or less alike. What will happen in the future is a matter of conjecture; it will probably depend on the situation in regard to land; if further overcrowding means the uprooting of several of the brothers and their engaging in industry outside, it will probably be the senior brother who will stay, and the rule will then be primogeniture. But if ample land of a fair average quality is made available the old custom will probably reassert itself and ultimogeniture prevail; the elders say they still regard it as the proper course, but add that all the brothers would certainly want to settle in the added land and take their mother with them.

Even in the early days the movement of whole families was not unknown. One of the sons

(generally the eldest), having found a particularly good piece of land larger than he himself could use, might persuade his father to leave their former holding, possibly becoming overcrowded and worn out, hemmed in by other families and short of grazing, and go and join him. The father could not settle on the land acquired by any son of his, but he could set up a home, with the assistance of his sons, next door.¹ His former *kisese*, if he had one, would then revert to *wetu*, but the original *ng'undu* would remain his family's in perpetuity, which in practice meant for just as long as the local memory of their exclusive right of tenure lasted; if the family wished to retain its hold on the land it would have to leave an agent or one of its members there or jog the memory of the local people by fairly frequent visits.

This matter of land-inheritance by one son only by primogeniture or ultimogeniture is of more than academic interest. Already in several of the Native Lands a position has been reached in which, if the soil is to be saved at all, one family may no longer be replaced by two or more in every generation. Some form of unifamilial succession will be necessary if the land and population balance is to be preserved continuously

¹ There was a custom in regard to settlement in seniorities which is reminiscent of the Kikuyu practice of settlement by ridges. It would appear that in the original agricultural settlements two branches of one kinship group would settle close to one another but on opposite sides of a stream, which would serve them both as a water supply. Later, in the settlement of the *wetu*, a man joining his junior in the same kinship could not settle on the same spot with him but would set up home next door, if possible with a stream between the two. When there was no stream this separation by flowing water was effected ritually. A medicine-man (*mundu wa ng'undu*) was called in and he would dig a small ditch along the boundary decided on, assisted by other elders. He would then bring gravel, sand, or pebbles from an actual river bed and put them in the ditch and then pour water in it, declaring it to be a stream. The word used for such an artificial boundary was the same as that for river, stream (*usi*, pl. *mbusi*) or its diminutive (*kalusi*, pl. *tulusi*).

by some method incorporated in the native system rather than by the savage surgery of occasional eviction. Primogeniture would appear to be the one to advocate. Every younger son would know exactly where he stood and would be conditioned from his infancy to an understanding of his situation. The last-born son might be a long time coming, and when he came he might be actually of a different kindred altogether; native opinion may not always tolerate the theory of the parity of natural and fictitious kinship, particularly when the principle that heirship is contingent on a payment to another kin has faded out. The present tendency seems to be towards a recognition of primogeniture; in Kikuyu the principle that it is the duty of the youngest son to stay with his mother is yielding to the principle that the eldest son is his father's natural successor and should, as head of the family, in due course replace him on the family land. This is perhaps nothing but a further manifestation of the increasing emphasis on patrilineal principles, but it is strengthened by the fact that nowadays to leave one's family land is generally to leave the tribal land completely and get a living somewhere else. Where new land is plentiful ultimogeniture prevails, but where there is no new land available primogeniture seems likely to take its place. When beneficial occupation entails absorption of a surplus population in industry outside the tribal land primogeniture would appear to be the most convenient form of succession both from the Government and the African point of view, but when land is added to the tribal land whether as a straight addition to the unit or as a settlement area under immediate control, ultimogeniture would seem to be unobjectionable and might conform more fully to African opinion.

(to be continued)